

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

December 20, 2017

Due to the Christmas holiday, the Governing Body of the City of Cheyenne instead met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR – Marian J. Orr; COUNCIL MEMBERS – Rocky Case, Bryan Cook, Richard Johnson, Pete Laybourn, Scott Roybal, Dr. Mark Rinne, Dicky Shanor and Jeff White. Absent: Mike Luna. Also present: Carol Intlekofer, City Clerk, and Sylvia Hackl, City Attorney. The pledge of allegiance was recited.

Election of City Council President for 2018. Mayor Orr announced that pursuant to Title 2 of Cheyenne City Code the Mayor conducts the election for the office of City Council President but does not cast a vote. Mr. Shanor moved to nominate and elect Dr. Rinne as City Council President for 2018, seconded by Mr. Case. Dr. Rinne accepted the nomination. There being no further nominations, Mr. Shanor moved that nominations cease, seconded by Mr. Case. Motion carried. Voting “yes” – all members of City Council present. Motion to nominate and elect Dr. Rinne as City Council President for 2018 carried. Voting “yes” – all members of City Council present with the exception of Mr. Johnson voting “no”.

Election of City Council Vice-President for 2018. Mayor Orr announced that pursuant to Title 2 of Cheyenne City Code the Mayor conducts the election for the office of City Council Vice-President but does not cast a vote. Mr. Cook moved to nominate and elect Mr. Case as City Council Vice-President for 2018, seconded by Dr. Rinne. Mr. Case accepted the nomination. There being no further nominations, Mr. Shanor moved that nominations cease, seconded by Mr. Cook. Motion carried. Voting “yes” – all members of City Council present. Motion to nominate and elect Mr. Case as City Council Vice-President for 2018 carried. Voting “yes” – all members of the City Council present with the exception of Mr. Johnson voting “no”.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Mr. Shanor stated he would be abstaining from voting (conflict of interest involving Consent Agenda Item #17) and vacated Council Chambers. Upon request by Mr. Laybourn, and pursuant to support received by Mr. Case and Mr. Cook, Agenda Items #14 and 15 were removed from the Consent Agenda. Remaining Consent Agenda items were approved. Voting “yes” – all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Shanor returned to Council Chambers.

[CA] Minutes from Regular Meeting of the Governing Body on November 27, 2017. Motion (per Consent Agenda) carried.

Mr. Roybal declared a conflict of interest (business interest in voucher payable to Cowboy Dodge, Inc.) and vacated Council Chambers. Mr. Shanor moved to approve payment of vouchers as presented, seconded by Mr. Case. Mr. Laybourn moved to divide the question to allow for a separate vote on the voucher payable to Noel Griffith Jr. & Associates, seconded by Mr. Case.

Motion to divide the question carried. Voting “yes” – all members of the governing body present in Council Chambers. In response to a procedural question, Carol Intlekofer, City Clerk, explained when an item is divided it is considered and voted upon separately and that a separate motion to approve is not needed as the motion to divide splits the main motion into one or more parts. Mr. Laybourn moved to postpone action on the voucher payable to Noel Griffith Jr. & Associates to January 8, 2018, seconded by Mr. Case. Motion carried. Voting “yes” – all members of the governing body present in Council Chambers. Motion to approve remaining vouchers carried. Voting “yes” – all members of the governing body present in Council Chambers with the exception of Mr. Johnson voting “no”. Following announcement of the vote, Mr. Roybal returned to Council Chambers. Under other business later in the meeting, clarification was given to staff pertaining to information to be provided prior to the next Council meeting regarding the postponed voucher.

ORDINANCE – 3rd READING – Annexing to the City of Cheyenne, Wyoming, a portion of Section 9, all of the W½ Section 14, all of Section 15, a portion of Section 16, and all of Section 21; Township 13 North, Range 66 West of the 6th P.M., Laramie County, Wyoming (located to the southeast of the intersection of E. College Drive and Avenue C) (postponed from 12/11/2017). Reporting for Public Services Committee, Mr. Roybal moved to approve on third and final reading, seconded by Mr. Johnson. Mr. Roybal moved to postpone to January 8, 2018 at the request of staff, seconded by Mr. Shanor. Motion carried. Voting “yes” – all members of the governing body present.

ORDINANCE – 3rd READING – Amending various sections of Title 10, Vehicles and Traffic, of the code of the City of Cheyenne, Wyoming. Mr. Roybal moved to approve on third and final reading, seconded by Mr. White. Upon inquiry pertaining to a previously approved amendment changing the signed parking enforcement distance from 100 ft. to 150 ft., Sylvia Hackl, City Attorney, expressed her opinion that specificity of the number of feet vs. a reference to a portion of a block is more appropriate, and listing the specific footage is defensible. Motion carried. Voting “yes” – all members of the governing body present. (#4213)

ORDINANCE – 2nd READING – Pursuant to Sections 1.1.6 and 2.4.1 of the Cheyenne Unified Development Code (UDC), amending Section 1.4.4.f., Industrial Use definition, of the UDC to clarify what land uses are subject to the Moderate Industrial and the Industrial use categories. Mr. Roybal moved to approve on second reading, seconded by Mr. Case. Comment followed on property use for vehicle impoundment storage areas for public vs. private sectors. Susana Montana, Planning and Development Department, advised staff will be recommending an amendment at the next Public Services Committee meeting to define the term “impoundment yard”. Upon inquiry, Ms. Montana stated the conditional use would pertain to all commercial and industrial districts, and that the new definition would be included in the current definition section of the UDC. Motion carried. Voting “yes” – all members of the governing body present with the exception of Dr. Rinne voting “no”.

RESOLUTION – Authorizing the Mayor and the City Clerk to sign a County Final Plat for Clear Creek Subdivision, 1st Filing, being situated in portions of Sections 10, 11, 14, 15 and 16, Township 13 North, Range 67 West of the Sixth Principal Meridian, Laramie County, Wyoming (located west of I-25 between College Drive and I-80). Mr. Roybal, seconded by Mr. Case, moved to adopt with revised plat map and the following staff condition #1: Include the Mayor’s and City Clerk’s names and titles on the signature block in the dedication statement. Upon inquiry, Seth Lloyd, Planning and Development Department, explained the Mayor and City Clerk information

needs to be in the dedication statement as the City owns some of the land within the plat boundary. Motion carried. Voting “yes” – all members of the governing body present. (#5897)

RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Clear Creek Subdivision, 2nd Filing, being situated in portions of Sections 11 and 12, Township 13 North, Range 67 West of the Sixth Principal Meridian, City of Cheyenne, Wyoming (located southeast of the I-25 and I-80 interchange). Mr. Roybal, seconded by Mr. Case, moved to adopt with revised plat map and the following staff conditions: #1 – Include the Mayor’s and City Clerk’s names and titles on the signature block in the dedication statement, and #2 – Provide dimensional data for the 40 ft. access easement or provide a reference book and page if this access easement follows a pre-existing easement. Motion carried. Voting “yes” – all members of the governing body present. (#5898)

RESOLUTION – Acknowledging receipt of the Southeast Greenway Trail Connector Plan. Mr. Roybal moved to adopt, seconded by Mr. White. Comment was made on project improvements of this type, the need to find funding for the project and the importance of receiving over-the-cap funding from the state to help the City with costs of community growth and affiliated needs. Motion carried. Voting “yes” – all members of the governing body present. (#5899)

RESOLUTION – Acknowledging receipt of the Cheyenne Frontier Days Traffic Study and Transportation Plan. Mr. Roybal moved to adopt, seconded by Mr. White. Discussion included support of the plan; extensive use of the area during Frontier Days celebrations; the need to find funding for the project and the importance of receiving over-the-cap funding from the state, and implementation of the plan to assist with law enforcement officer safety. Motion carried. Voting “yes” – all members of the governing body present. (#5900)

[CA] RESOLUTION – Authorizing the Mayor and City Clerk to execute a State Historic Preservation Office Certified Local Government Grant Agreement for board training to attend two historic preservation conferences. Motion (per Consent Agenda) carried. (#5901)

[CA] RESOLUTION – Certifying that the Governing Body of the City of Cheyenne has agreed upon the Laramie County Sheriff Detention Center Pump Project, to be submitted to the State Loan and Investment Board for 2015-2016 Countywide Consensus Block Grant Funding. Motion (per Consent Agenda) carried. (#5902)

[CA] RESOLUTION – Designating local banks as depositories for municipal funds – referred to Finance Committee. (Sponsor – Mr. Luna)

[CA] Memorandum of Understanding between the City of Cheyenne and Cheyenne Firefighters Local Union No. 279, International Association of Firefighters to clarify the intent of a portion of Section 23, Working in a Higher Job Rank, contained in the 2017-2018 Collective Labor Agreement. Motion (per Consent Agenda) carried. (#6768)

[CA] Service Agreement between the City of Cheyenne, Community Recreation and Events Department, and Wyoming Beverage, Cheyenne, Wyoming, for non-alcoholic beverage concessions for the Ice and Events Center – referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne, Police Department, and Top-Flight Maintenance, Cheyenne, Wyoming, for the provision of cleaning services for the Cheyenne Public Safety Center – referred to Finance Committee.

[CA] Request to change retail liquor license package store room dimensions for the Albany, Inc. d/b/a Albany Restaurant, Bar and Liquormart, 1506 Capitol Avenue, Cheyenne, Wyoming. Motion (per Consent Agenda) carried.

Re-appointment of Tucker Fagan and Jim Hearne to the City/County Joint Powers Board (Frontier Park Improvements); William Sean Casey, Paul Frauendienst and Gabriel Herrera to the Building Code Board of Appeals; Russ Pollard to the Police Civil Service Commission; Mark Hardee to the Fire Civil Service Commission; Dr. Brad Kincheloe to the Cheyenne/Laramie County Board of Health; Barbara Sandick to the Historic Preservation Board; Stephanie Boster and Kevin Schwaiger to the Board of Adjustment; Stephen Ganison, Carol Slane and Craig Kerrigan to the Housing and Community Development Advisory Council; Philip Griggs and Gunnar Malm to the Planning Commission, and Noel Griffith Jr., M.J. Gertsch and Mark Archer to the Contractor Licensing Board. Mr. Shanor moved to approve, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body present with the exception of Mayor Orr who did not vote (Mayoral appointees).

Appointment of Anthony Laird to the Board of Adjustment; Jesse Naiman to the Personnel Commission; Brian Tyrrell and Jeremy Arneson to the Planning Commission; Patrice Gapen, Jean Vetter and Susan Tobin to the Housing and Community Development Advisory Council, and Max Carre, Charles Young II, David Benner and Jamie McGrew to the Historic Preservation Board. Mr. Roybal moved to approve, seconded by Mr. Case. A correction to the name of Patrice Green to Patrice Gapen was noted. Motion carried. Voting “yes” – all members of the governing body present with the exception of Mayor Orr who did not vote (Mayoral appointees)

Announcement was made of a public hearing to be held January 8, 2018 at 6:00 p.m. in City Council Chambers, 2101 O’Neil Avenue, Cheyenne, Wyoming, to determine whether compliance of annexation conditions required by Wyoming Statute §15-1-402 exists for all of Tracts 31 and 32 and that portion of James Drive intervening; and a portion of Tract 39, Hill Heights Addition; and adjacent portions of Gysel Place and Van Buren Ave.; situated in Section 23, Township 14 North, Range 66 West of the 6th P.M., County of Laramie, State of Wyoming (located east of and adjacent to Van Buren Avenue, north of Dell Range Boulevard).

Announcement was made that due to the New Year’s Day Holiday on Monday, January 1, 2018, regularly scheduled City Council Committee meetings will instead be held in the Municipal Building, 2101 O’Neil Avenue, Room 104, Cheyenne, Wyoming, as follows: Finance Committee will meet Tuesday, January 2, 2018 at 11:00 a.m. and Public Services Committee will meet Wednesday, January 3, 2018 at Noon.

Under other business:

Upon inquiry, clarification was given to staff pertaining to information to be provided prior to the next Council meeting regarding the postponed voucher payable to Noel Griffith Jr. & Associates.

Jeff Dierksen referenced comments he made at the last City Council meeting regarding traffic and safety concerns on Pinto Lane; summarized neighborhood concerns, and reviewed petitions signed by residents in the neighborhood that had been submitted. Also under other business, Dr. Rinne commented the City must follow WYDOT rules and regulations with regard to altering speed limits, and Mr. Laybourn discussed city-wide traffic and safety concerns.

Mr. Laybourn commented on topics discussed during a meeting that had been held between the Mayor and Ward I City Council members regarding the Civic Center Commons Project. Mayor Orr provided information in response to the comments, noting a new City Engineer will be on board in January, and advised of the Project's design status and anticipated timing for issuance of request for bids.

Mr. Johnson expressed concerns regarding the process utilized for determining the City Council President and Vice-President for 2018, and with meeting procedures during the current meeting.

Carol Intlekofer, City Clerk, stated, due to timeliness, a resolution was being introduced under other business entitled: A Resolution supporting the City of Cheyenne's continuing participation in the State Small Business Credit Initiative (SSBCI) and Wyoming Smart Capital Network (WSCN) program; approving program changes through an amendment to the Services Agreement, including geographic boundaries, board, and the Credit Guaranty and Seed Capital Network Program, and retaining the majority of the original SSBCI rules as modified by the WSCN (Sponsor – Mr. Luna). Mayor Orr referred the resolution to Finance Committee.

There being no further business to come before the governing body, the meeting was officially adjourned at 6:52 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

Published: Wyoming Tribune-Eagle
January 3, 2018